HARLEY MILLER Law Firm



2025

LAW AND RAILWAY MANAGEMENT

HARLEY MILLER LAW FIRM

+8493 721 5585

hmlf.vn | luatminhnguyen.com

miller@hmlf.vn

mary@luatminhnguyen.com

HARLEY MILLER Law Firm

TABLE OF CONTENT

03 INTRODUCTION

04 LEGAL FRAMEWORK

07 TECHNICAL STANDARDS AND MAINTENANCE OF INFRASTRUCTURE

09 INVESTMENT POLICIES AND INCENTIVES

13 TRANSPORT AND OPERATIONS REGULATIONS

17 SAFETY AND ENVIRONMENTAL PROTECTION

20 CONCLUSION

INTRODUCTION

Vietnam's railway sector, with a history spanning nearly 150 years, plays a vital role in the national transportation system. According to the General Statistics Office, as of 2022, the national railway network had a total length of 3,315 km, including 2,647 km of main lines and 515 km of station and branch lines.

However, the current infrastructure is deteriorating and fails to meet the demands of modern transportation. According to the Ministry of Transport, to address this issue, the Government has approved the Railway Network Master Plan for the 2021–2030 period, with a vision toward 2050. The goal is to develop a modern railway system that meets transport demands and supports international integration.

This report analyzes the legal, technical, investment, operational, and environmental aspects of Vietnam's railway sector. It provides a comprehensive overview of the current status, challenges, and development opportunities, offering strategic insights for policymakers, investors, and businesses in shaping the future of the railway industry.

HARLEY MILLER Law Firm

LEGAL FRAMEWORK

Refer to the full article at: Vietnam Railway Law: Latest Updates & Detailed Guide

1. Overview of Railway Law

2. Latest Update in 2025





LEGAL FRAMEWORK

1. Overview of Railway Law

1.1 Scope of Regulation: Covers all activities related to planning, investment, construction, management, and maintenance of railway infrastructure, railway industry, signaling and traffic rules, railway business, and state management.

1.2 Applicable Entities: Applies to domestic and foreign organizations and individuals involved in railway activities within Vietnam.

1.3 Legal Documents:

- Railway Law 2017
- Guiding Decrees
- Relevant Circulars
- National Technical Regulations & Standards



LEGAL FRAMEWORK

2. Latest Update in 2025

According to the Government Electronic Newspaper, on February 25, 2025, the Government Office issued Notice No. 59/TB-VPCP on the draft amended Railway Law. The draft should adopt a framework law approach, delegate technical details to ministries, and codify special policies on technology, training, and railway industry development. It also aims to improve the PPP mechanism, promote public-private investment, streamline procedures, decentralize authority, and align with international practices.

HARLEY MILLER Law Firm

TECHNICAL STANDARDS AND MAINTENANCE OF INFRASTRUCTURE

Refer to the full article at: Railway Construction & Maintenance Standards: Comprehensive Guide 2025

1. Railway Construction Standards

2. Standards for Maintenance and Technical Inspection





TECHNICAL STANDARDS AND MAINTENANCE OF INFRASTRUCTURE

1. Railway Construction Standards

- Railway structures
- Protection zone for railway structures
- Railway traffic safety corridor

2. Standards for Maintenance and Technical Inspection

2.1. Periodic Maintenance Procedures

- Maintenance activities
- Maintenance documentation
- Application of standards, technical regulations, and economic-technical norms
- Implementation organization

2.2. Inspection and Assessment of Structural Safety and Operational Safety During Operation and Use

HARLEY MILLER Law Firm

INVESTMENT POLICIES AND INCENTIVES

Refer to the full article at: Investment Opportunities in the Railway Sector: Latest Policies & Incentives

1. Investment Opportunities

2. Public-Private Partnership (PPP) Model

3. Investment Incentives and Support



HARLEY MILLER Law Firm

INVESTMENT POLICIES AND INCENTIVES

1. Investment Opportunities

Vietnam's railway sector is offering attractive investment opportunities during the 2021–2050 period, with large-scale projects and a growing demand for modern infrastructure. According to the National Railway Network Planning, the system will expand from 7 to 16 lines by 2030, with a total length of 4,802 km, and further increase to 25 lines reaching 6,354 km by 2050.

The government is also promoting diverse investment mobilization mechanisms, including public-private partnerships (PPP), official development assistance (ODA), and land value capture around railway stations through the transit-oriented development (TOD) model.



INVESTMENT POLICIES AND INCENTIVES

2. Public-Private Partnership (PPP) Model

Types of PPP

- BOT, BTO, BOO, O&M Contracts
- BTL, BLT Contracts
- BT Contract

Advantages of the PPP Model

- Attracts private investment
- Enhances efficiency and project quality
- Reduces risks for the government
- Improves the quality of public services
- Facilitates technology transfer
- Ensures long-term sustainability
- Promotes transparency and oversight



INVESTMENT POLICIES AND INCENTIVES

3. Investment Incentives and Support

Regulations on Incentives and Support

- State policies on railway development
- Incentives and support in railway operations

Practical Incentives and Support

- Priority use of Vietnamese products
- Investment capital allocation mechanisms
- Land value capture around railway stations
- Adjustment of material resource exploitation
- Preparation of Front-End Engineering Design (FEED)
- Other supporting policies



HARLEY MILLER Law Firm

TRANSPORT AND OPERATIONS

Refer to the full article at: Rail Transport Regulations: A Comprehensive Guide for Businesses

1. Conditions for Operating

2. Railway Transport



TRANSPORT AND OPERATIONS

Conditions for Operating

1. Conditions for Licensing

- A department responsible for transport safety
- At least one person with a university degree in railway transport and 3 years of experience
- Technical manager of operations: university degree, 3 years of experience

2. Licensing Registration Requirements

- Application for transport business license
- Copy of enterprise registration certificate
- Business and traffic safety plans
- List of transport vehicles with registration and safety certificates
- Diplomas and certificates of the transport operator (if any)

Submit to the Vietnam Railway Authority

License issued if approved; otherwise, revisions required

Processing time: 15–30 working days

Post-licensing monitoring to ensure compliance

TRANSPORT AND OPERATIONS

Railway Transport

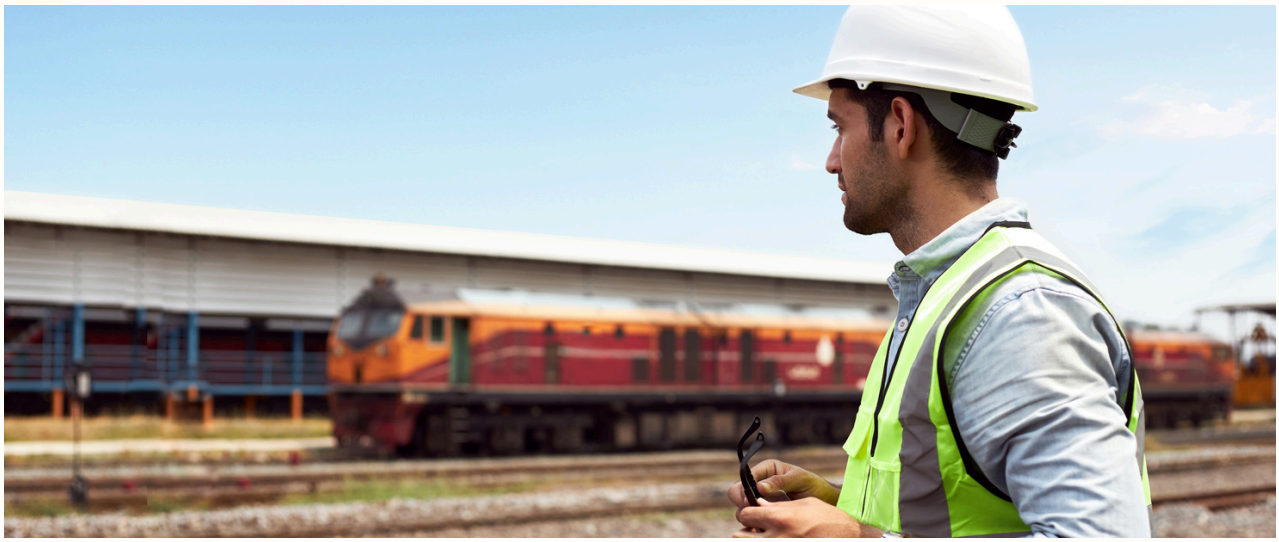
1. Passenger Transport

Rights

- Require additional tickets for invalid or missing tickets
- Refuse/suspend transport as required by law
- Provide extra seats or convert sleeper berths during peak times
- Exercise other rights under the Railway Law

Obligations

- Display key information (schedules, prices, baggage rules)
- Ensure safety and security of passengers and baggage
- Notify train delays
- Report to the Railway Authority
- Follow OSJD, Vietnam-China Protocol, and Railway Law obligations



TRANSPORT AND OPERATIONS

Railway Transport

2. Cargo Transport

General goods

- Household items, clothing, footwear
- Machinery, equipment, vehicles
- High-value items (luxury goods, electronics)
- Agricultural products, food requiring preservation

Special goods

- Machinery not placed in covered wagons
- Bulk or unpackaged goods with indeterminate quantities
- Live animals
- Dangerous goods
- Human remains
- Goods requiring special care or transport upon request



HARLEY MILLER Law Firm

SAFETY AND ENVIRONMENTAL PROTECTION

Refer to the full article at: Railway Safety & Environmental Protection: 2025 Guidelines

1. Railway Environment

2. Technical Safety

3. Fire Prevention and Fighting



SAFETY AND ENVIRONMENTAL PROTECTION

Railway Environment

1. Railway Environmental Protection

- Inspection during manufacturing and assembly
- Inspection upon importation
- Inspection after modification
- Periodic inspection

2. Environmental Standards

- Diesel engine and sand exhaust system
- Air conditioning and ventilation system
- Power converter, battery, traction electric motor
- Electrical devices and electrical systems
- Car body leak test and operational inspection
- Periodic inspection and modification



SAFETY AND ENVIRONMENTAL PROTECTION

Technical Safety

- Bogie frame, car body
- Couplers and buffers
- Braking system
- Train control system
- Train safety devices, fire prevention and fighting
- Driver's cabin, passenger compartments
- Lighting, signaling, horn systems
- Testing and operational inspection

Fire Prevention and Fighting

- Warning signs and regulations compliant with fire safety standards
- Safe arrangement of electrical systems, fuel, and goods
- Firefighting equipment meeting technical standards
- Assigned fire safety roles and readiness organization
- Approved design review or acceptance documents (if any)
- Firefighting plan approved by the vehicle owner

HARLEY MILLER Law Firm

CONCLUSION

Vietnam's railway sector is undergoing modernization and plays a pivotal role in the development of national transport infrastructure. With long-term planning orientations, preferential policies, flexible investment mechanisms, and strong commitments to safety and environmental protection, the sector presents substantial potential and appeal to both domestic and foreign investors.



CONTACT

HARLEY MILLER LAW FIRM

412 Nguyen Thi Minh Khai Street, Ward 5, District 3, Ho Chi Minh City

FOR MORE INFORMATION

+8493 721 5585

hmlf.vn | luatminhnguyen.com

miller@hmlf.vn

mary@luatminhnguyen.com